

Central Valley Regional Water Quality Control Board

19 August 2024

Justin Vinson
Public Works Superintendent
City of Atwater
750 Bellevue Road
Atwater, CA 95301

VIA EMAIL:
Jvinson@atwater.org
CERTIFIED MAIL
7020 0640 0002 1958 4013

NOTICE OF APPLICABILITY (NOA) AMENDMENT; MUNICIPAL GENERAL ORDER FOR MUNICIPAL WASTEWATER DISCHARGERS THAT MEET OBJECTIVES/CRITERIA AT THE POINT OF DISCHARGE TO SURFACE WATER ORDER R5-2023-0025, NATIONAL POLLUTANT DISCHARGE ELIMINATION SYSTEM (NPDES) CAG585001; CITY OF ATWATER, ATWATER REGIONAL WASTEWATER TREATMENT FACILITY, MERCED COUNTY

On 17 July 2024, the Central Valley Regional Water Quality Control Board (Central Valley Water Board) enrolled the City of Atwater (Discharger), Atwater Regional Wastewater Treatment Facility (Facility) under the General Order for Municipal Wastewater Dischargers That Meet Objectives/Criteria at the Point of Discharge to Surface Water Order R5-2023-0025 (Municipal General Order). The enrollment (enrollee number **R5-2023-0025-005**) authorizes the Discharger to discharge tertiary treated domestic wastewater from the Facility to the Peck/Atwater Drain.

The current NOA requires the Discharger to calculate the percent removal for total suspended solids (TSS) at Monitoring Location EFF-001 once per week, which was an error. The amendment specified below revises the effluent TSS percent removal calculation frequency to once per month which will provide the information necessary to evaluate compliance with the TSS percent removal effluent limitation. Additionally, the Monitoring and Reporting section of the current NOA requires effluent characterization monitoring to be conducted between 1 October 2025 and 30 September 2026, and receiving water sampling once between 1 October 2025 and 31 March 2026 (wet season) and once between 1 April 2026 and 31 September 2026 (dry season). However, the Supplemental Fact Sheet says otherwise, thus, the amendments below align the Supplemental Fact Sheet with the NOA's monitoring requirements.

AMENDMENTS

1. Effective immediately, the 17 July 2024 NOA R5-2023-0025-005 is amended as follows:
 - a. Table D-3 of the NOA. The minimum calculation frequency of once per week for TSS percent removal is removed and replaced with once per month (**1/Month**).

2. Effective immediately, the 17 July 2024 NOA R5-2023-0025-005 is amended as follows:
- Section IV.J.1 of the Supplemental Fact Sheet. The effluent characterization monitoring period between 1 October 2024 and 30 September 2025 is removed and replaced with **1 October 2025 and 30 September 2026**. The frequency remains quarterly. The receiving water characterization monitoring period between 1 October 2024 and 30 September 2025 is replaced with the once between **1 October 2025 and 31 March 2026 (wet season)** and once between **1 April 2026 and 31 September 2026 (dry season)**.

Any person aggrieved by this action of the Central Valley Water Board may petition the State Water Board to review the action in accordance with California Water Code section 13320 and California Code of Regulations, title 23, sections 2050 and following. The State Water Board must receive the petition by 5:00 p.m., 30 days after the date this NOA amendment, except that if the thirtieth day following the date this NOA is issued falls on a Saturday, Sunday, or state holiday, the petition must be received by the State Water Board by 5:00 p.m. on the next business day. Links to the laws and regulations applicable to filing petitions (http://www.waterboards.ca.gov/public_notices/petitions/water_quality) may be found on the Internet or will be provided upon request.



For Patrick Pulupa
Executive Officer

cc:

Prasad Gullapalli, U.S. EPA, Region IX, San Francisco (email only)
Peter Kozelka, U.S. EPA, Region IX, San Francisco (email only)
Justin Sloan, U.S. Fish and Wildlife Service, Sacramento (email only)
Merced National Wildlife Refuge (email only)
Afrooz Farsimadan, California State Water Resources Control Board (email only)
Renan Jauregui, California State Water Resources Control Board (email only)
Jarma Bennett, California State Water Resources Control Board, (email only)
Discharge Monitoring Reports, California State Water Resources Control Board (email only)
California Department of Fish and Wildlife, Region 4, Fresno (email only)
Brooke Gutierrez, Merced Irrigation District, Merced
Debbie Mackey, Central Valley Clean Water Association, Sacramento (email only)
Michelle Chester, Central Valley Clean Water Association, Sacramento (email only)
Steve Pound, Veolia Water, Atwater (email only)
Kathryn Gies, West Yost Associates, Walnut Creek (email only)
Michael D. Gallo, Joseph Gallo Farms, P.O. Box 775, Atwater, CA 95301-0775
Richard McHenry, California Sportfishing Protection Alliance, Stockton (and via email)
Jo Anne Kipps, Fresno (email only)
Michael Garabedian, Placer Group Sierra Club & Friends of the North Fork (email only)

cc:

Ed Ketchum, Amah Mutsun Tribal Band (email only)
Lloyd Mathiesen, Chicken Ranch Rancheria of Me-Wuk Indians (email only)
Robert Ledger, Dumna Wo-Wah Tribal Government (email only)
Monica Arellano, Muwekma Ohlone Indian Tribe of the SF Bay Area (email only)
Cosme Valdez, Nashville Enterprise Miwok-Maidu-Nishinam Tribe (email only)
Mary Stalter, North Fork Rancheria of Mono Indians (email only)
Timothy Perez, Northern Valley Yokut / Ohlone Tribe (email only)
Heather Airey, Picayune Rancheria of the Chukchansi Indians (email only)
Shana Powers, Santa Rosa Rancheria Tachi Yokut Tribe (email only)
Tara Fouch-Moore, Southern Sierra Miwuk Nation (email only)
Bob Pennell, Table Mountain Rancheria (email only)
Kerri Vera, Tule River Indian Tribe (email only)
Stanley Cox, Tuolumne Band of Me-Wuk Indians (email only)
Kenneth Woodrow, Wuksachi Indian Tribe/Eshom Valley Band (email only)
Linda Xiong, Community Initiatives for Collective Impact (email only)
Olivia Faz, Leadership Counsel for Justice & Accountability (email only)